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25-CIV-07999

BRIAN TAUSSIG, ET AL. VS. GEORGE H. OGATA, ET AL.

LINE 5

BRIAN TAUSSIG
GEORGE H. OGATA

JAIME C. UZIEL

ORDER TO SHOW CAUSE HEARING FOR DEFENDANT TO SHOW IT HAS AN ATTORNEY REPRESENTING IT OR WHY ITS ANSWER SHOULD NOT BE STRICKEN AND DEFAULT ENTERED IN FAVOR OF PLAINTIFFS AND AGAINST DEFENDANT AND DEFENDANT'S PRIOR MOTION TO EXPUNGE LIS PENDENS.

TENTATIVE RULING:

The June 30, 2026 Order to Show Cause is DISCHARGED and Defendant's prior fully briefed motion to expunge the Lis Pendens previously set for June 22, 2026 and taken off calendar is reset for October 5, 2026 and is DENIED.

On June 30, 2026, the Court ordered Defendant Roberta Shong to show that she has retained an attorney to represent her in her capacity as trustee of the Ogata Family Trust ("Trust") in this matter or to show cause why her responsive pleading should not be stricken and her default entered. Shong, as well as Plaintiffs Brian Traussig and Meghan Ann Joyce, have filed responses.

In general, "a trust is not a person but rather a fiduciary relationship with respect to property." (*Moeller v. Superior Court* (1997) 16 Cal.4th 1124, 1132, fn. 3.) "For that reason, the trustee, rather than the trust, is the real party in interest in litigation involving trust property." (*Id.*)

And, because a trust is not a legal entity, a trustee who appears in court in her capacity as trustee does not represent the trust's interests but either the interests of the beneficiaries or the settlor, depending on whether the trust is revocable. (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 548.) By filing or presenting argument in propria persona on behalf of those interests, therefore, a trustee may be engaged in the unauthorized practice of law, which courts are empowered to prevent. (*Id.* at 549.)

However, a "sole settlor, trustee, and beneficiary" may represent his own interests at trial without an attorney (*Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1525), and "[a]lthough generally nonattorney trustees cannot appear in propria persona because they are representing the interests of others, a trustee who is also the only settlor and beneficiary 'does not appear in court proceedings concerning the trust in a representative capacity.' [Citation.] Instead, such a trustee 'represents his or her own interests, not someone else's,' and therefore has the right to self-representation. [Citation.]" (*Boshernitsan v. Bach* (2021) 61 Cal.App.5th 883, 894.)

The clear import of these holdings is that the proper analysis of whether a pro se litigant may appear in her capacity as trustee of a trust must include a determination of whose interests the litigant is representing: "Ziegler articulates a general rule that nonattorneys who purport to conduct litigation on behalf of others violate the prohibition against the unauthorized practice of law." (*Aulisio*, 230 Cal.App.4th at 1524.) If the litigant represents only his or her own, he or she may proceed without an attorney.

Here, Shong presents evidence in the form of a declaration under penalty of perjury that she is the sole trustee and only beneficiary of an express trust that became irrevocable upon the death of her grandfather, the sole surviving settlor. (Sep. 4, 2026 Response to OSC, p. 6, ¶ 4; *Estate of Giralдин* (2012) 55 Cal.4th 1058, 1071–1072 [trustee’s duty is solely to beneficiary upon death of settlor].) While Traussig and Joyce request that the Court compel further evidence of this fact, their request is based on speculation about the truth of Shong’s statement made under penalty of perjury rather than any evidence of their own. The Court understands Plaintiffs’ concerns because it appears that Shong made a statement in her pleading (“Not once was there ever a question between the neighbors as to the property boundary line.”) that Plaintiffs have demonstrated to be false and which raises questions about Shong’s candor. If Plaintiffs later learn that Shong’s claim under penalty of perjury to be the only person with an interest in trust assets is false, it can re-raise the issue.

The evidence thus shows Shong is only representing her own interest in this matter, she can proceed in *propia persona*. Accordingly, the order to show cause is DISCHARGED.

The Court had previously vacated the hearing on Shong’s April 6, 2026 Motion to Expunge noting “that it was inclined to deny the Motion because Plaintiffs have met their burden of showing a likelihood of prevailing on their real property claim...to give the Defendant an opportunity to obtain counsel[.]” June 29, 2026 Order. Shong has obviously not done so (obtained counsel), the motion was fully briefed and the Court sets it for hearing on October 5, 2026. For the purposes of efficiency, this will also serve as the sole tentative ruling on that motion, which is DENIED.

Plaintiffs met their burden of establishing a likelihood of prevailing. The Grant Deed, which is Exhibit A to the verified Complaint, shows that Plaintiffs are the owners of the property. Plaintiffs also provide a declaration by Gregory Ippolito, who performed the Foresight land survey. (Ippolito Decl.) Ippolito explains that he has a copy of the original subdivision map, of which he provides a copy as Exhibit A. (Id., April 21, 2026 letter.) The subdivision map contained graphical notations for physical reference points called monuments. (Id.) He measured based on the original controlling monuments, the physical roadway and the nearby buildings and fences to find the boundaries. (Id.) He further states that the bearings pointed out by Defendant as different are in fact the same bearings. (Id.) Defendant has not provided any evidence to refute Ippolito’s Declaration. If Shong wishes to argue this portion of the tentative on September 21st and she timely notifies the Plaintiffs and, absent objection, it can be heard on September 21, 2026. But she may not file supplemental briefing or evidence, which would be stricken.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiffs shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-02641 KARON REID VS. BWNVT MOTORS, INC., ET AL.

LINE 6

KARON REID
BWNVT MOTORS, INC.

MICHAEL A. KLITZKE
JOHN W. RANUCCI

PLAINTIFF: KARON REID'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES TO BWNVT, MOTORS INC. DBA SERRAMONTE FORD, SET ONE

TENTATIVE RULING:

Regardless of whether this tentative is contested, the parties are ordered to APPEAR to discuss the other outstanding motions.

The unopposed motion is granted. Defendant shall serve a verified response to plaintiff's Special Interrogatories, Set One, within 14 days. The request for sanctions is also granted. Defendant shall pay plaintiff \$424.22 within 30 days.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiffs shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
